

but it is conceived that the doubt is purely technical, and has no solid foundation (*b*).

[The capital stocks created under the subsequent East India Loan Acts are, by those Acts, expressly directed to be deemed to be East India stock within 22 & 23 Vict. c. 35, s. 32, unless and until Parliament shall otherwise provide (*c*).]

India Railway Stock. — *Railway stock* guaranteed by the *Indian Government* is not within the Act (*d*).

5. **23 & 24 Vict. c. 38.** — By s. 10 of 23 & 24 Vict. c. 38, the Court of Chancery was empowered to issue general orders from time to time as to the investment of cash subject to its jurisdiction, either “in Three per Cent. Consolidated, or Reduced, or New Bank Annuities, or in such other stocks, funds, or securities” as the Court should think fit; and by the following section, trustees, executors, or administrators, “having power to invest their trust funds upon Government securities, or upon parliamentary stocks, funds, or securities, or any of them,” may invest “in any of the stocks, funds, or securities, in or upon which, by such general order,” cash may be invested by the Court (*e*).

6. **General order.** — A General Order, dated February 1, 1861, was issued under the powers of this Act [which order has recently been annulled by the Rules of the Supreme Court, 1883, and its place supplied, in a slightly modified form, by Order 22, Rules 17 and 18, as follows:—

R. 17. “Cash under the control of, or subject to the order of, the Court may be invested in *Bank stock*, *East India stock*, *Exchequer bills*, and *2l. 10s. per cent. Annuities*, and upon *mortgage* of freehold and copyhold estates respectively

(*b*) As to the parties to be served, see *Re Price's Estate*, W. N. 1872, p. 159.

(*c*) See 32 & 33 Vict. c. 106, s. 16; 36 Vict. c. 32, s. 16; 37 Vict. c. 3, s. 17; 40 & 41 Vict. c. 51, s. 18; 42 & 43 Vict. c. 60, s. 18; 43 Vict. c. 10, s. 14.]

(*d*) *Green v. Angell*, W. N. 1867, p. 305.

(*e*) In this section the power is a general one, without the exception contained in 22 & 23 Vict. c. 35, s. 32, and it will not be overruled by an express direction in the instrument creating the trust that the investments are to be confined to those enumerated therein. *In re Wedderburn's Trusts*, 9 Ch. D. 112.]